

Plaintiff argues that Enterprise's police report generated both the Napa and Sonoma prosecutions, the Sonoma County dismissal was terminated in Plaintiff's favor, Enterprise's police report lacked probable cause and was made with malice. As discussed above, Plaintiff failed to make a prima facie showing that Enterprise's police report was made without probable cause or with malice, the second and third elements of a malicious prosecution claim. As such, Plaintiff has failed to establish a prima facie showing of probable likelihood to prevail on his malicious prosecution claim against Enterprise.

Based on the foregoing, the anti-SLAPP motion is GRANTED. The alternative demurrer is therefore MOOT.

D. ATTORNEYS' FEES

Enterprise argues that it is entitled to recover its attorney's fees and costs in connection with the Motion. The "prevailing defendant" on the motion to strike "shall be entitled" to recover the defendant's attorney fees and costs. (§ 425.16, subd. (c).) As Enterprise is the prevailing defendant on the present Motion, it is entitled to recover its attorney fees and costs. The Court does not herein determine the amount of reasonable attorney fees and costs to which it is entitled, as Enterprise states that it intends to bring a separately noticed motion thereon.

GUARDIANSHIP CALENDAR – Hon. Veronica Juarez, Dept. 6 (Criminal Courts Bldg. – 1111 Third St.) at 2:00 p.m.

Miriam Saucedo Martinez v. Sergio Ramirez Diaz

26FL000507

[1] PETITION TO ESTABLISH PARENTAL RELATIONSHIP

[2] REQUEST FOR SPECIAL IMMIGRANT JUVENILE FINDINGS

TENTATIVE RULING: Both matters are GRANTED.

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Guardianship of Camila Cardenas Valencia

26PR000102

[1] PETITION FOR APPOINTMENT OF GUARDIAN

[2] PETITION FOR SPECIAL IMMIGRANT JUVENILE FINDINGS

TENTATIVE RULING: Both Petitions are GRANTED. The Court has read and considered all reports submitted pursuant to Probate Code section 1513.

The matter is set for a Guardianship Review Hearing and Event for September 17, 2027, at 2:00 p.m. in Dept. 6. The guardian is advised that she will receive a blank Status Report (GC-